The Assistant Commissioner Of Customs ... vs International Asset Reconstruction ... on 7 December, 2022

Author: Gauri Godse

Bench: Nitin Jamdar, Gauri Godse

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION
WRIT PETITION NO. 675 OF 2016

International Asset Reconstruction Company Pvt. Ltd. ... Petitioner
vs.
Commissioner of Customs & Ors. ... Respondents

WITH

WRIT PETITION NO. 1964 OF 2017

The Assistant Commissioner of Customs, Seepz ... Petitioner
vs.
International Asset Reconstruction Co. Pvt. Ltd. & Ors. ... Respondents

.....

Mr. Rohit Gupta i/b. V. Deshpande & Co. for the Petitioner in WP No.675 of 2016 and for the Respondents in WP No. 1964 of 2017.

Mr. Advait M. Sethna with Ms. Ruju Thakker for the Petitioner in WP No. 1964 of 2017 and for the Respondent in WP No. 675 of 2016.

CORAM : NITIN JAMDAR AND
GAURI GODSE, JJ.

DATE : 7 DECEMBER 2022 P.C.:

The petitions were adjourned awaiting decision of the full bench of this Court. The learned Counsel for the parties inform that the full bench of this Court in the case of

Jalgaon Janta Sahakari Bank Ltd. & Anr. Vs. Joint Commissioner of Sales Tax 6-wp-675-2016.doc Nodal 9, Mumbai & Anr. and other connected petitions1 has rendered decision on 30 August 2022.

2. The learned Counsel for the Petitioner states that the Hon'ble Supreme Court in the case of Punjab National Bank Versus Union of India & Ors.2 has taken a view that the secured creditors would have priority over the dues of the Customs Department.

3. The learned Counsel for the Respondent-Customs Department, however, sought to distinguish the decisions contending that in the present case, the Customs Department is enforcing its right qua a bond executed by the borrowers and in that sense it has to be treated as secured creditor.

4. Stand over to 4 January 2023, at the bottom of the admission board.

5. The learned Counsel for the parties will circulate a summary of propositions with reference to pleadings (with page numbers) and statutory provisions. Compilations of case law, if any, shall contain an index and the relevant paragraphs be marked and the proposition for which they are cited. The summary and compilations be circulated in advance.

(GAURI GODSE, J.) (NITIN JAMDAR, J.)

1 Original Side WP No. 2935 of 2018
2 Civil Appeal No. 2196 of 2012 dated 24 February 2022